

13. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION - CONTINUED FROM
8/17/26
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

This matter is **CONTINUED** by the Court to October 19, 2026, 9:00 a.m. in Department 34.

14. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
STRIKE PORTIONS OF COMPLAINT - CONTINUED FROM
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Reflections Maintenance Association's (hereafter "Defendant" or "RMA") Motion to Strike attorney's fees. The Motion to Strike relates to Plaintiff's Complaint filed on March 27, 2026. Defendant requests to strike paragraph 8 in the prayer for relief.

For the following reasons, the Motion to Strike is **DENIED** in its entirety.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.) Defendant has satisfied its meet and confer requirement. (Code Civ. Proc. § 435.5)

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section

436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Attorneys' Fees

Pro per litigants are not entitled to recover attorney's fees. (*Trope v. Katz* (1995) 11 Cal.4th 274, 292.)

Defendant argues that Plaintiff prays for "reasonable attorney's fees and expenses to the extent authorized by statute." (Complaint, Prayer, ¶ 8.) Defendant posits that Plaintiff is proceeding in Pro Per and therefore has not incurred, and will not incur, attorney's fees.

However, Defendant cannot guarantee that Plaintiff will never incur attorneys' fees as Plaintiff can hire an attorney whenever he chooses.

Defendant secondly contends that Plaintiff has failed to plead either the existence of a statute which would provide for attorneys' fees or a contract.

The Complaint's First Cause of Action is brought in part under Civil Code section 5235 (Complaint ¶¶ 14, 17, 25), which governs a member's right to enforce inspection of association records. Section 5235 authorizes an award of reasonable costs and expenses, including reasonable attorneys' fees, to the prevailing member in such an enforcement action.

The Complaint does allege in its declaratory relief cause of action a situation where Civil Code section 5235 applies.

Conclusion

For the reasons analyzed above, the Motion to Strike is **DENIED** in its entirety

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Introduction

Before the Court is Defendant Reflections Maintenance Association's Demurrer to Plaintiff's Complaint filed on March 27, 2026. The Demurrer challenges the first and second causes of action for declaratory relief and injunctive relief.

For the reasons explained below, Defendant Reflections Maintenance Association's Demurrer to Plaintiff's first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.)